

# Baseline welfare: completed primary profiles

Coverage: 74 of 74 article-selected primary cases; 36 of 36 American/British comparisons. Pending cases are listed in the source data.

These are five separate monetary measures, in damages units and weighted over potential disputes. They do not form an additive welfare index. The truth relationship is the baseline identity map. Alternative truth assumptions are not included.

RN denotes risk neutrality; RA denotes symmetric CARA risk aversion (alpha in parentheses). Asymmetric cases state each party's alpha. American and British are the main rules. Trial-only fee shifting appears as a separate ordinary-cost extension.

Levels use the established truth-prior weighting of truth-conditional outcomes; direct replay truth mass is retained separately in the source catalog. Values are displayed to three decimals; calculations and comparisons use unrounded data. † marks a nonzero value that rounds to zero.

| Specification                       | Risk     | Fee        | P shortfall | D nonliable | D liable excess | Gross error | Real costs |
|-------------------------------------|----------|------------|-------------|-------------|-----------------|-------------|------------|
| Baseline; cost 0.25                 | RA (2)   | American   | 0.201       | 0.197       | 0.004           | 0.354       | 0.088      |
| Baseline; cost 0.25                 | RA (2)   | British    | 0.190       | 0.187       | 0.005           | 0.338       | 0.086      |
| Baseline; cost 0.25                 | RN       | American   | 0.182       | 0.182       | 0.022           | 0.294       | 0.138      |
| Baseline; cost 0.25                 | RN       | British    | 0.167       | 0.155       | 0.045           | 0.285       | 0.114      |
| Baseline; cost 0.5                  | RA (2)   | American   | 0.223       | 0.219       | 0.008           | 0.354       | 0.175      |
| Baseline; cost 0.5                  | RA (2)   | British    | 0.200       | 0.231       | 0.005           | 0.352       | 0.161      |
| Baseline; cost 0.5                  | RN       | American   | 0.201       | 0.189       | 0.032           | 0.282       | 0.207      |
| Baseline; cost 0.5                  | RN       | British    | 0.178       | 0.160       | 0.072           | 0.280       | 0.176      |
| Baseline; cost 1                    | RA (2)   | American   | 0.278       | 0.278       | 0.004           | 0.399       | 0.312      |
| Baseline; cost 1                    | RA (2)   | British    | 0.168       | 0.156       | 0.064           | 0.277       | 0.142      |
| Baseline; cost 1                    | RA (2)   | Trial only | 0.196       | 0.184       | 0.014           | 0.280       | 0.175      |
| Baseline; cost 1                    | RN       | American   | 0.216       | 0.222       | 0.028           | 0.278       | 0.292      |
| Baseline; cost 1                    | RN       | British    | 0.167       | 0.197       | 0.096           | 0.275       | 0.262      |
| Baseline; cost 1                    | RN       | Trial only | 0.213       | 0.175       | 0.047           | 0.273       | 0.236      |
| Baseline; cost 2                    | RA (2)   | American   | 0.277       | 0.163       | 0.006           | 0.281       | 0.256      |
| Baseline; cost 2                    | RA (2)   | British    | 0.169       | 0.204       | 0.113           | 0.285       | 0.258      |
| Baseline; cost 2                    | RN       | American   | 0.274       | 0.220       | 0.023           | 0.282       | 0.361      |
| Baseline; cost 2                    | RN       | British    | 0.183       | 0.199       | 0.142           | 0.275       | 0.321      |
| Baseline; cost 4                    | RA (2)   | American   | 0.426       | 0.058       | 0.001           | 0.341       | 0.190      |
| Baseline; cost 4                    | RA (2)   | British    | 0.237       | 0.205       | 0.187           | 0.297       | 0.413      |
| Baseline; cost 4                    | RN       | American   | 0.343       | 0.346       | 0.007           | 0.328       | 0.607      |
| Baseline; cost 4                    | RN       | British    | 0.215       | 0.198       | 0.230           | 0.283       | 0.421      |
| asymmetric-risk / d-only-ra; cost 1 | P 0, D 2 | American   | 0.210       | 0.268       | 0.024           | 0.304       | 0.318      |
| asymmetric-risk / d-only-ra; cost 1 | P 0, D 2 | British    | 0.106       | 0.313       | 0.076           | 0.314       | 0.261      |
| asymmetric-risk / p-only-ra; cost 1 | P 2, D 0 | American   | 0.268       | 0.166       | 0.024           | 0.304       | 0.259      |
| asymmetric-risk / p-only-ra; cost 1 | P 2, D 0 | British    | 0.292       | 0.103       | 0.021           | 0.320       | 0.165      |
| cost-timing / earlier-costs; cost 1 | RA (2)   | American   | 0.272       | 0.270       | 0.018           | 0.333       | 0.391      |
| cost-timing / earlier-costs; cost 1 | RA (2)   | British    | 0.294       | 0.229       | 0.028           | 0.338       | 0.376      |
| cost-timing / earlier-costs; cost 1 | RN       | American   | 0.238       | 0.204       | 0.026           | 0.275       | 0.290      |
| cost-timing / earlier-costs; cost 1 | RN       | British    | 0.177       | 0.175       | 0.109           | 0.275       | 0.235      |
| cost-timing / later-costs; cost 1   | RA (2)   | American   | 0.242       | 0.242       | 0.004           | 0.399       | 0.168      |
| cost-timing / later-costs; cost 1   | RA (2)   | British    | 0.165       | 0.157       | 0.041           | 0.283       | 0.113      |
| cost-timing / later-costs; cost 1   | RN       | American   | 0.226       | 0.203       | 0.042           | 0.280       | 0.288      |
| cost-timing / later-costs; cost 1   | RN       | British    | 0.170       | 0.172       | 0.069           | 0.273       | 0.195      |
| court-noise / sigma-0p1; cost 1     | RA (2)   | American   | 0.254       | 0.254       | 0.011           | 0.340       | 0.336      |
| court-noise / sigma-0p1; cost 1     | RA (2)   | British    | 0.167       | 0.155       | 0.064           | 0.276       | 0.142      |

| Specification                                        | Risk   | Fee      | P shortfall | D nonliable | D liable excess | Gross error | Real costs |
|------------------------------------------------------|--------|----------|-------------|-------------|-----------------|-------------|------------|
| court-noise / sigma-0p1; cost 1                      | RN     | American | 0.214       | 0.203       | 0.025           | 0.269       | 0.266      |
| court-noise / sigma-0p1; cost 1                      | RN     | British  | 0.164       | 0.165       | 0.085           | 0.268       | 0.195      |
| court-noise / sigma-0p4; cost 1                      | RA (2) | American | 0.317       | 0.317       | 0.001           | 0.483       | 0.303      |
| court-noise / sigma-0p4; cost 1                      | RA (2) | British  | 0.319       | 0.319       | 0.001           | 0.487       | 0.301      |
| court-noise / sigma-0p4; cost 1                      | RN     | American | 0.329       | 0.329       | 0.075           | 0.383       | 0.552      |
| court-noise / sigma-0p4; cost 1                      | RN     | British  | 0.281       | 0.211       | 0.120           | 0.328       | 0.377      |
| direct-binary / calibrated-to-uniform-merits; cost 1 | RA (2) | American | 0.281       | 0.281       | 0.004           | 0.407       | 0.309      |
| direct-binary / calibrated-to-uniform-merits; cost 1 | RA (2) | British  | 0.200       | 0.200       | 0.012           | 0.256       | 0.309      |
| direct-binary / calibrated-to-uniform-merits; cost 1 | RN     | American | 0.140       | 0.102       | 0.047           | 0.080       | 0.283      |
| direct-binary / calibrated-to-uniform-merits; cost 1 | RN     | British  | 0.054       | 0.043       | 0.117           | 0.076       | 0.222      |
| grid / signals-12-offers-8; cost 1                   | RA (2) | American | 0.262       | 0.262       | 0.011           | 0.356       | 0.336      |
| grid / signals-12-offers-8; cost 1                   | RA (2) | British  | 0.169       | 0.153       | 0.064           | 0.277       | 0.138      |
| grid / signals-12-offers-8; cost 1                   | RN     | American | 0.228       | 0.198       | 0.033           | 0.276       | 0.274      |
| grid / signals-12-offers-8; cost 1                   | RN     | British  | 0.166       | 0.189       | 0.091           | 0.274       | 0.236      |
| grid / signals-8-offers-12; cost 1                   | RA (2) | American | 0.287       | 0.253       | 0.007           | 0.380       | 0.319      |
| grid / signals-8-offers-12; cost 1                   | RA (2) | British  | 0.154       | 0.172       | 0.066           | 0.277       | 0.149      |
| grid / signals-8-offers-12; cost 1                   | RN     | American | 0.220       | 0.222       | 0.031           | 0.277       | 0.303      |
| grid / signals-8-offers-12; cost 1                   | RN     | British  | 0.179       | 0.175       | 0.095           | 0.275       | 0.230      |
| grid / signals-8-offers-8; cost 1                    | RA (2) | American | 0.290       | 0.290       | 0.003           | 0.425       | 0.309      |
| grid / signals-8-offers-8; cost 1                    | RA (2) | British  | 0.264       | 0.146       | 0.007           | 0.317       | 0.200      |
| grid / signals-8-offers-8; cost 1                    | RN     | American | 0.220       | 0.222       | 0.031           | 0.277       | 0.303      |
| grid / signals-8-offers-8; cost 1                    | RN     | British  | 0.179       | 0.175       | 0.095           | 0.275       | 0.230      |
| merits-distribution / center-weighted; cost 1        | RA (2) | American | 0.290       | 0.319       | 0.006           | 0.450       | 0.317      |
| merits-distribution / center-weighted; cost 1        | RA (2) | British  | 0.311       | 0.309       | 0.002           | 0.468       | 0.303      |
| merits-distribution / center-weighted; cost 1        | RN     | American | 0.303       | 0.303       | 0.047           | 0.376       | 0.457      |
| merits-distribution / center-weighted; cost 1        | RN     | British  | 0.239       | 0.242       | 0.119           | 0.346       | 0.350      |
| merits-distribution / polarized; cost 1              | RA (2) | American | 0.227       | 0.227       | 0.008           | 0.291       | 0.326      |
| merits-distribution / polarized; cost 1              | RA (2) | British  | 0.119       | 0.114       | 0.067           | 0.202       | 0.120      |
| merits-distribution / polarized; cost 1              | RN     | American | 0.181       | 0.139       | 0.019           | 0.200       | 0.200      |
| merits-distribution / polarized; cost 1              | RN     | British  | 0.127       | 0.122       | 0.087           | 0.200       | 0.174      |
| private-noise / sigma-0p1; cost 1                    | RA (2) | American | 0.247       | 0.243       | 0.003           | 0.335       | 0.310      |
| private-noise / sigma-0p1; cost 1                    | RA (2) | British  | 0.159       | 0.127       | 0.057           | 0.259       | 0.093      |
| private-noise / sigma-0p1; cost 1                    | RN     | American | 0.209       | 0.160       | 0.017           | 0.261       | 0.182      |
| private-noise / sigma-0p1; cost 1                    | RN     | British  | 0.160       | 0.170       | 0.080           | 0.261       | 0.182      |
| private-noise / sigma-0p4; cost 1                    | RA (2) | American | 0.300       | 0.350       | 0.000           | 0.500       | 0.300      |
| private-noise / sigma-0p4; cost 1                    | RA (2) | British  | 0.350       | 0.300       | 0.000           | 0.500       | 0.300      |
| private-noise / sigma-0p4; cost 1                    | RN     | American | 0.292       | 0.292       | 0.089           | 0.308       | 0.553      |
| private-noise / sigma-0p4; cost 1                    | RN     | British  | 0.241       | 0.214       | 0.151           | 0.310       | 0.450      |

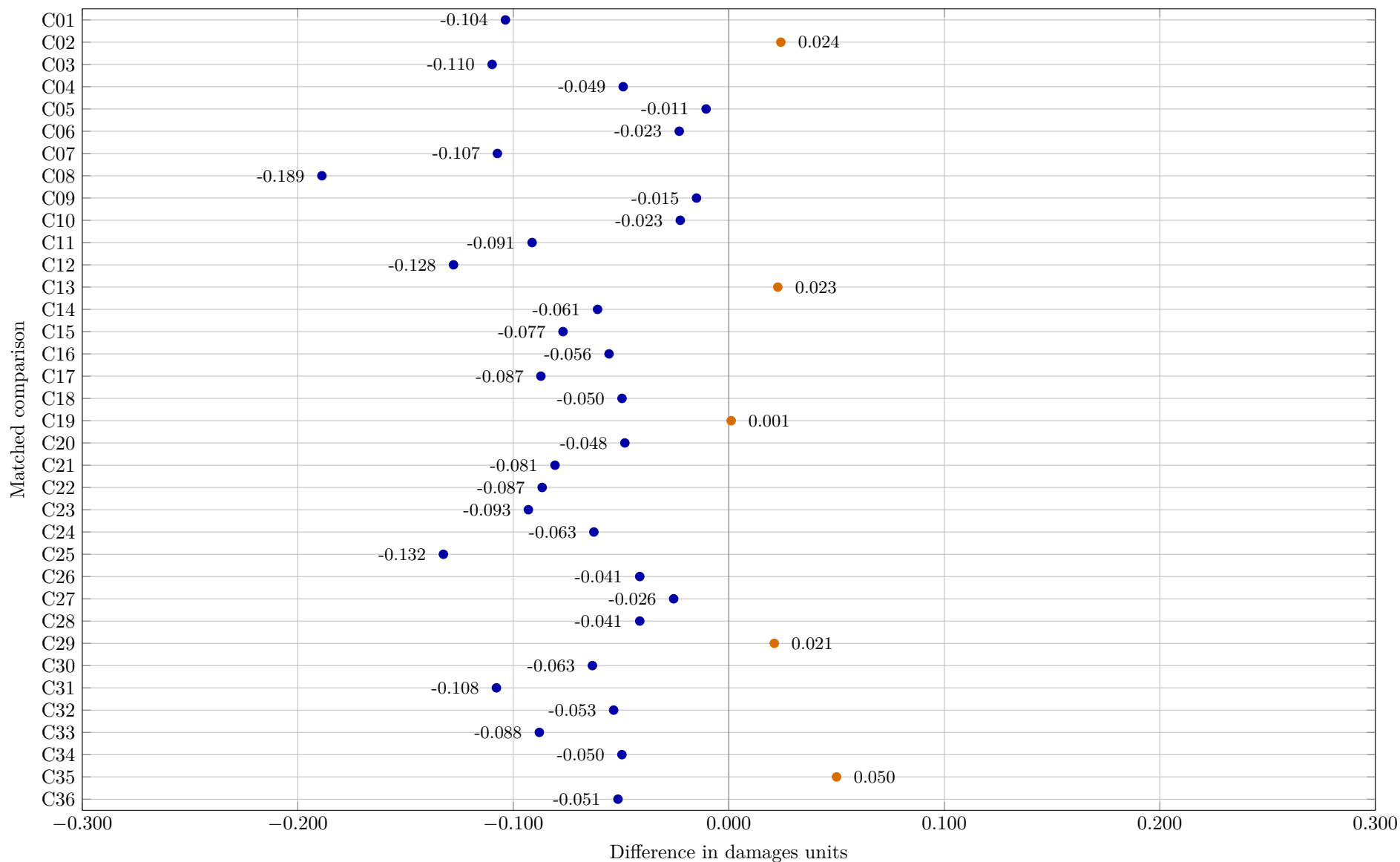
# Matched fee comparisons

Every difference is British minus American under the same specification, costs and risk preferences. Each listed pair has passed the four-corner rule/behavior decomposition and complete endpoint checks.

| Code | Specification                                        | Risk     | P shortfall | D nonliable | D liable excess    | Gross error        | Real costs         |
|------|------------------------------------------------------|----------|-------------|-------------|--------------------|--------------------|--------------------|
| C01  | asymmetric-risk / d-only-ra; cost 1                  | P 0, D 2 | -0.104      | 0.045       | 0.053              | 0.010              | -0.057             |
| C02  | asymmetric-risk / p-only-ra; cost 1                  | P 2, D 0 | 0.024       | -0.063      | -0.003             | 0.015              | -0.095             |
| C03  | Baseline; cost 1                                     | RA (2)   | -0.110      | -0.122      | 0.060              | -0.122             | -0.170             |
| C04  | Baseline; cost 1                                     | RN       | -0.049      | -0.025      | 0.068              | -0.002             | -0.030             |
| C05  | Baseline; cost 0.25                                  | RA (2)   | -0.011      | -0.010      | 0.001              | -0.016             | -0.002             |
| C06  | Baseline; cost 0.5                                   | RA (2)   | -0.023      | 0.012       | -0.002             | -0.001             | -0.014             |
| C07  | Baseline; cost 2                                     | RA (2)   | -0.107      | 0.041       | 0.106              | 0.005              | 0.002              |
| C08  | Baseline; cost 4                                     | RA (2)   | -0.189      | 0.147       | 0.186              | -0.044             | 0.223              |
| C09  | Baseline; cost 0.25                                  | RN       | -0.015      | -0.026      | 0.023              | -0.009             | -0.024             |
| C10  | Baseline; cost 0.5                                   | RN       | -0.023      | -0.029      | 0.040              | -0.003             | -0.031             |
| C11  | Baseline; cost 2                                     | RN       | -0.091      | -0.021      | 0.120              | -0.007             | -0.041             |
| C12  | Baseline; cost 4                                     | RN       | -0.128      | -0.148      | 0.223              | -0.046             | -0.185             |
| C13  | cost-timing / earlier-costs; cost 1                  | RA (2)   | 0.023       | -0.041      | 0.010              | 0.005              | -0.015             |
| C14  | cost-timing / earlier-costs; cost 1                  | RN       | -0.061      | -0.029      | 0.083              | 0.000 <sup>†</sup> | -0.055             |
| C15  | cost-timing / later-costs; cost 1                    | RA (2)   | -0.077      | -0.084      | 0.037              | -0.116             | -0.056             |
| C16  | cost-timing / later-costs; cost 1                    | RN       | -0.056      | -0.031      | 0.027              | -0.007             | -0.093             |
| C17  | court-noise / sigma-0p1; cost 1                      | RA (2)   | -0.087      | -0.099      | 0.053              | -0.064             | -0.194             |
| C18  | court-noise / sigma-0p1; cost 1                      | RN       | -0.050      | -0.038      | 0.060              | -0.001             | -0.071             |
| C19  | court-noise / sigma-0p4; cost 1                      | RA (2)   | 0.001       | 0.001       | 0.000 <sup>†</sup> | 0.003              | -0.002             |
| C20  | court-noise / sigma-0p4; cost 1                      | RN       | -0.048      | -0.118      | 0.045              | -0.055             | -0.175             |
| C21  | direct-binary / calibrated-to-uniform-merits; cost 1 | RA (2)   | -0.081      | -0.081      | 0.008              | -0.151             | 0.000 <sup>†</sup> |
| C22  | direct-binary / calibrated-to-uniform-merits; cost 1 | RN       | -0.087      | -0.059      | 0.070              | -0.003             | -0.061             |
| C23  | grid / signals-12-offers-8; cost 1                   | RA (2)   | -0.093      | -0.109      | 0.053              | -0.079             | -0.198             |
| C24  | grid / signals-12-offers-8; cost 1                   | RN       | -0.063      | -0.009      | 0.058              | -0.001             | -0.038             |
| C25  | grid / signals-8-offers-12; cost 1                   | RA (2)   | -0.132      | -0.081      | 0.059              | -0.103             | -0.170             |
| C26  | grid / signals-8-offers-12; cost 1                   | RN       | -0.041      | -0.047      | 0.064              | -0.002             | -0.073             |
| C27  | grid / signals-8-offers-8; cost 1                    | RA (2)   | -0.026      | -0.143      | 0.004              | -0.108             | -0.109             |
| C28  | grid / signals-8-offers-8; cost 1                    | RN       | -0.041      | -0.047      | 0.064              | -0.002             | -0.073             |
| C29  | merits-distribution / center-weighted; cost 1        | RA (2)   | 0.021       | -0.010      | -0.004             | 0.018              | -0.014             |
| C30  | merits-distribution / center-weighted; cost 1        | RN       | -0.063      | -0.060      | 0.072              | -0.031             | -0.108             |
| C31  | merits-distribution / polarized; cost 1              | RA (2)   | -0.108      | -0.114      | 0.059              | -0.090             | -0.205             |
| C32  | merits-distribution / polarized; cost 1              | RN       | -0.053      | -0.018      | 0.068              | 0.000 <sup>†</sup> | -0.025             |
| C33  | private-noise / sigma-0p1; cost 1                    | RA (2)   | -0.088      | -0.116      | 0.054              | -0.076             | -0.217             |
| C34  | private-noise / sigma-0p1; cost 1                    | RN       | -0.050      | 0.010       | 0.064              | 0.000              | 0.000 <sup>†</sup> |
| C35  | private-noise / sigma-0p4; cost 1                    | RA (2)   | 0.050       | -0.050      | 0.000              | 0.000 <sup>†</sup> | 0.000 <sup>†</sup> |
| C36  | private-noise / sigma-0p4; cost 1                    | RN       | -0.051      | -0.078      | 0.063              | 0.002              | -0.103             |

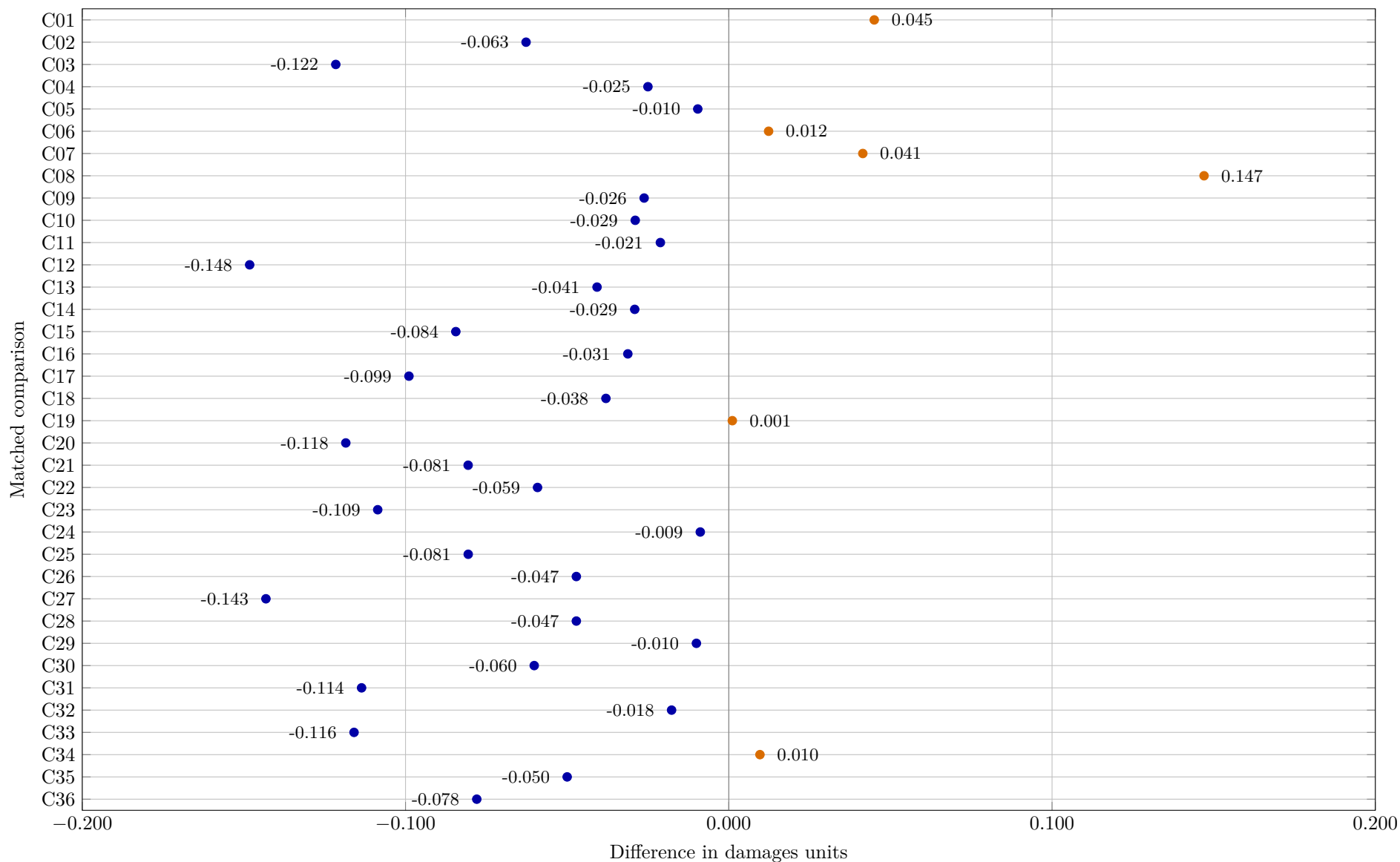
# Meritorious plaintiff shortfall

British minus American, using unrounded values. Codes identify the preceding matched-comparison table. Blue: negative; orange: positive. This is one monetary measure, not a combined policy ranking.



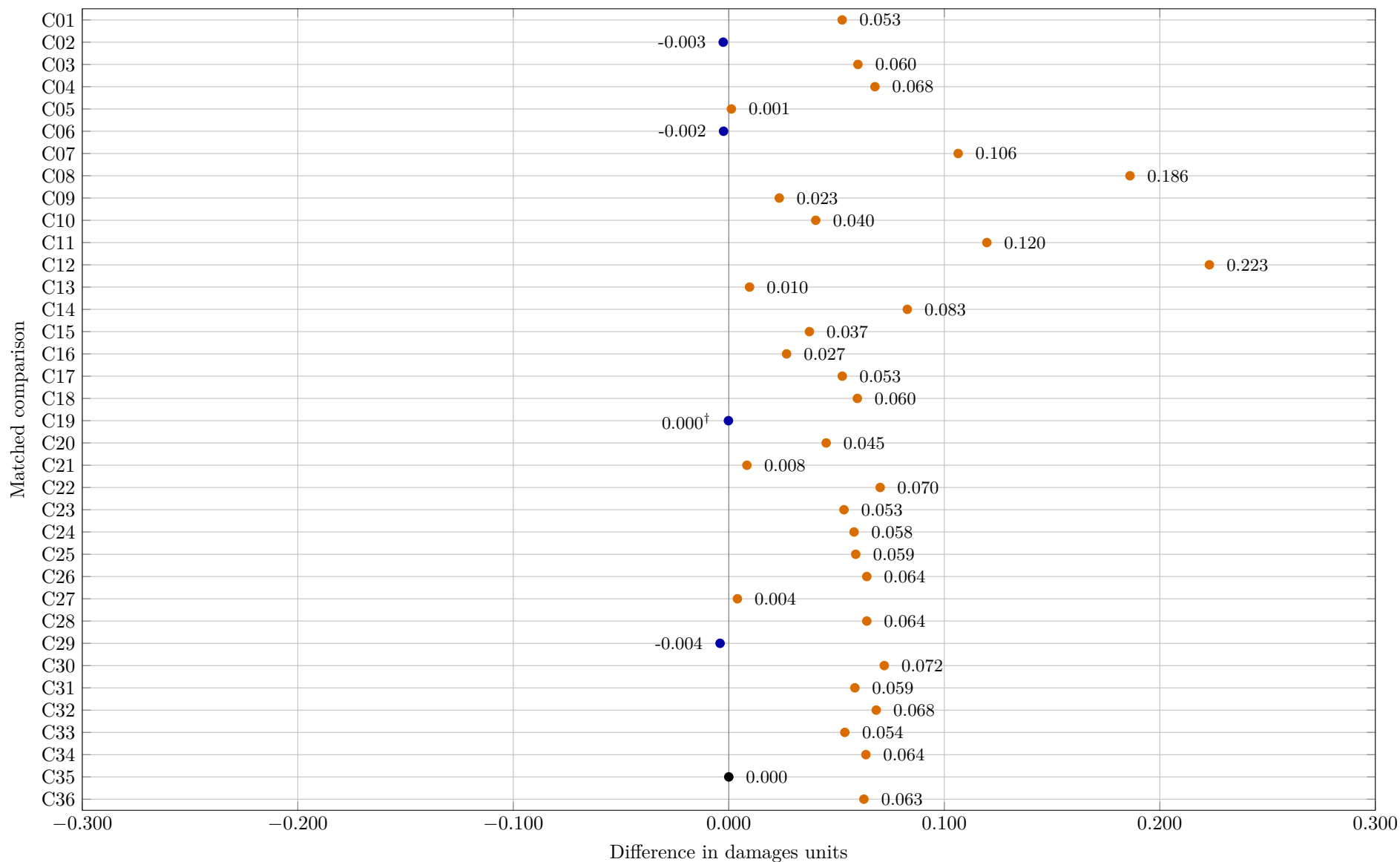
# Nonliable defendant burden

British minus American, using unrounded values. Codes identify the preceding matched-comparison table. Blue: negative; orange: positive. This is one monetary measure, not a combined policy ranking.



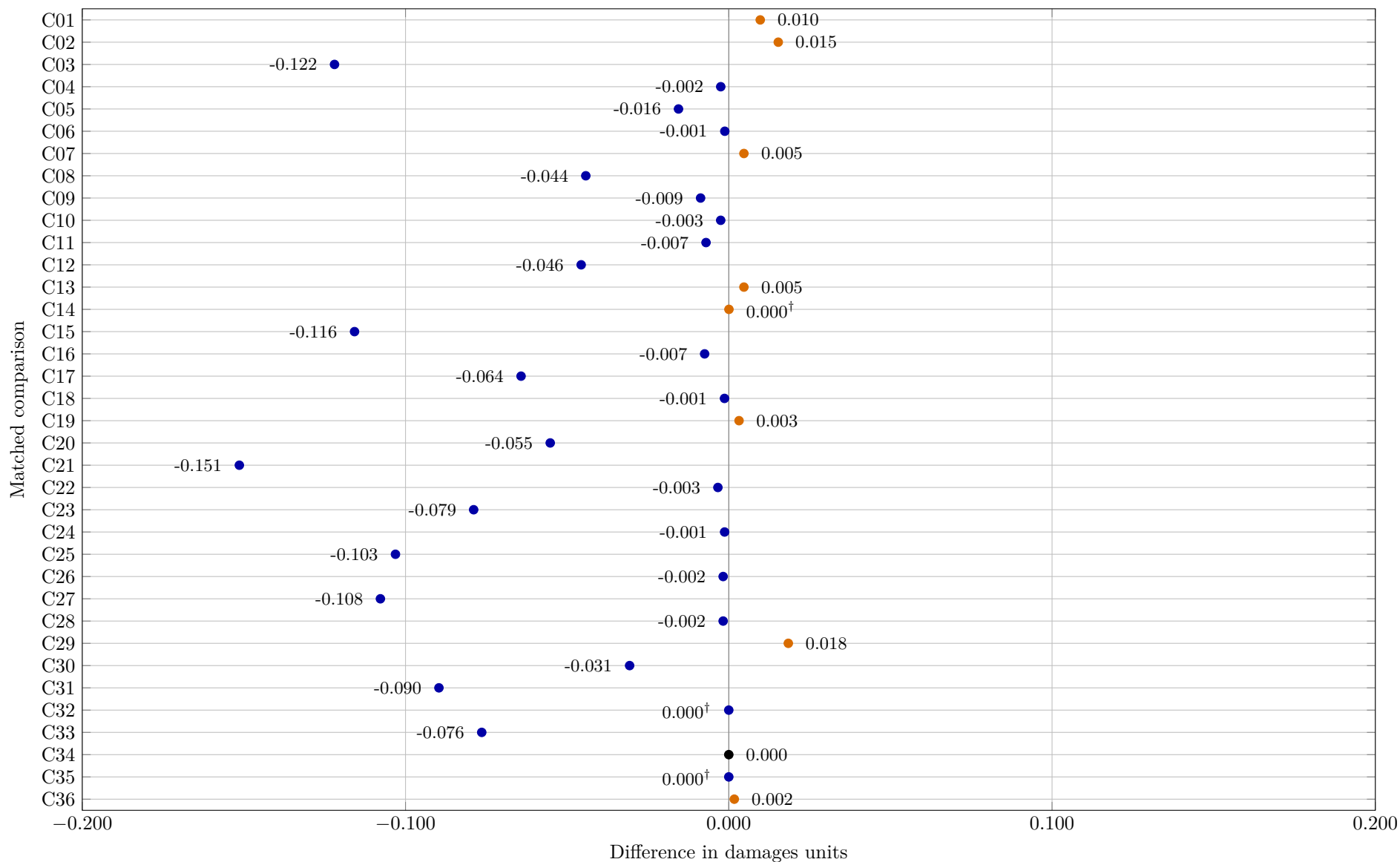
# Liable defendant excess burden

British minus American, using unrounded values. Codes identify the preceding matched-comparison table. Blue: negative; orange: positive. This is one monetary measure, not a combined policy ranking.



# Gross outcome error

British minus American, using unrounded values. Codes identify the preceding matched-comparison table. Blue: negative; orange: positive. This is one monetary measure, not a combined policy ranking.



# Real litigation expenditures

British minus American, using unrounded values. Codes identify the preceding matched-comparison table. Blue: negative; orange: positive. This is one monetary measure, not a combined policy ranking.

